

Sanitary and phytosanitary (SPS) measures are biosecurity measures designed to protect human, animal or plant life or health from:

- the introduction, establishment and spread of pests and diseases
- additives, toxins and contaminants in food and feed.

These measures are governed by the World Trade Organization's (WTO) [Agreement on the Application of Sanitary and Phytosanitary Measures](#) (the SPS Agreement), and its Committee on Sanitary and Phytosanitary Measures (the SPS Committee).

## **The SPS Agreement**

The [SPS Agreement](#) provides a framework of rules to guide WTO Members in the development, adoption and enforcement of sanitary (human or animal life or health) and phytosanitary (plant life or health) measures which may affect trade.

The SPS Agreement provides WTO Members with the right to implement SPS measures necessary to protect human, animal or plant life or health. Each WTO Member is entitled to maintain a level of protection it considers appropriate to protect human, animal or plant life or health within its territory. This is called the 'appropriate level of protection' (ALOP).

The right to adopt SPS measures is accompanied by obligations aimed at minimising the negative impacts SPS measures can have on international trade.

SPS measures must:

- be applied only to the extent necessary to protect human, animal or plant life or health and not be more trade restrictive than necessary
- be based on scientific principles and not maintained without sufficient scientific evidence
- not constitute arbitrary or unjustifiable treatment or a disguised restriction on international trade.

All WTO Members are required to uphold the principles and obligations of the SPS Agreement.

## **The SPS Committee**

The SPS Committee oversees the implementation of the SPS Agreement and provides a forum for discussion on animal and plant health and food safety measures affecting trade.

The committee meets 3 times a year. It provides a forum for all WTO Members to discuss the implementation of the SPS Agreement, including sharing their experiences, raising concerns about other members' activities and developing further guidance on implementing the SPS Agreement.

## Our role

We are responsible for setting and administering Australia's SPS measures, and for looking after Australia's exports by maintaining and improving technical market access.

We represent Australia's interests at SPS Committee meetings, along with the Department of Foreign Affairs and Trade (DFAT).

Working closely with our overseas counsellors and DFAT's diplomatic network, we also rely on our relationships with counterpart agencies overseas to raise and resolve SPS issues with other countries.

We also work closely with other Australian Government agencies in meeting our rights and obligations under the SPS agreement, including:

The SPS Agreement encourages WTO members to harmonise their measures by basing SPS measures on agreed international standards. These international standards are developed by organisations referred to as the 'three sisters'. The 'three sisters' develop international standards, recommendations and guidelines for plant and animal health and food safety.

They are the:

- [International Plant Protection Convention](#) (IPPC)
- [World Organisation for Animal Health](#) (WOAH, established as the Office International des Epizooties or, OIE)
- [Codex Alimentarius Commission](#) (Codex)

We work with and DFAT work together to coordinate Australia's input to shape international SPS policy and influence its development through active participation in the 'three three sisters' ([IPPC](#), [OIE](#) and [Codex](#)).

Where relevant international standards do not exist or a WTO member wishes to maintain a higher level of protection than provided by an international standard, the SPS Agreement requires members to base their SPS measures on a scientific assessment of the risks.

A risk assessment under the SPS Agreement must take into account the risk assessment techniques developed by the 'three sisters' (IPPC, WOAH and Codex).

Australia's SPS measures are based on science. We conduct science-based risk assessments, including import risk analyses (IRAs) under a regulated process, and develop recommendations on import conditions that would meet Australia's ALOP.

Learn more about our procedures and methods for assessing risks:

- [Biosecurity Import Risk Analysis](#) guidelines.

Once import conditions are established, we are responsible for ensuring these import conditions are met.

The SPS Agreement contains provisions to ensure transparency in the development and application of SPS measures, including the publication of SPS measures that apply to imported commodities.

WTO Members post SPS notifications on the WTO's SPS and TBT platform [ePing](#) to inform other members of changes to SPS measures that may have a significant effect on trade.

To enhance transparency, members must establish official contact points for communicating about SPS measures. These contact points are known as the National Notification Authority (NNA), which sends out SPS notifications, and the National Enquiry Point (NEP), which responds to enquiries about SPS measures.

Learn more about [Australia's SPS contact point](#).

The SPS agreement contains provisions for members to provide technical assistance to other countries, particularly developing countries, to implement SPS measures consistent with international standards and the expectations of trading partners.

Australia provides regular updates to the SPS committee on its technical assistance activities, which are available on the [WTO website](#).

The WTO provides a legally binding dispute settlement system to ensure that members comply with their obligations.

WTO Members can challenge the legality of SPS measures implemented by their trading partners if they consider that they do not comply with the SPS Agreement.

Learn more about the [WTO's dispute settlement system](#).

The [WTO SPS gateway](#) provides direct links to all information provided by the WTO relevant to the SPS Agreement.

We provide advice on [importing food and animal and plant products into Australia](#), including information on policies for importing animal and plant products into Australia via our online [Biosecurity Import Conditions \(BICON\)](#) system.

The SPS Agreement includes a range of transparency obligations.

Under the SPS Agreement WTO Members are required to notify any new or modified sanitary or phytosanitary measures. Members are expected to provide a comment period which allows other WTO Members and their stakeholders to raise questions ahead of the finalisation of the measure. By registering for the WTO's [ePing email alert system](#) you can receive notifications via email on a daily or weekly basis for your specific export markets and/or products.

Please note ePing uses information that WTO Members have notified to the WTO and therefore may not contain all SPS measures.